Standard Operating Procedure (SOP)

Country Specific Requirements Portugal

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Applicability

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Distribution Sheet for Quality Regulations

Division/Business Unit ☒ PH ☒ CH

GBS Location
☐ Global Business Services Barcelona
☒ Global Business Services Costa Rica/Brazil
☐ Global Business Services Manila
☐ Global Business Services Gdansk
☐ Global Business Services Bangalore
☐ Global Business Services Dalian
☐ Global Business Services Germany

Region/ Country
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1 Scope and Framework

1.1 Scope

Bayer Country Quality Units are accountable for a GDP and/or GMP compliant Product Technical Complaint Management within their respective countries. Within this responsibility they are supported by the respective GBS in process steps like complaint entry, initial risk classification, processing to the RQU, and final verification including complaint sample management and reimbursement process, wherever applicable.

This SOP defines clear guidance to the GBS regarding all country specific requirements.

1.2 Framework

This SOP is based on principles and requirements outlined in SSC-PTC-SOP-001 “Manage Product Technical Complaint and Suspected Counterfeit Incidents in GBS”.

2 Abbreviations

AE	Adverse Event
AH	Animal Health
BU	Business Unit
CQH	Country Quality Head
CQU	Country Quality Unit
FMD	Falsified Medicines Directive
GBS	Global Business Services
GDP	Good Distribution Practices
GMP	Good Manufacturing Practices
HA	Health Authority
MVO	Medicines Verification Organization
NCA	National Competent Authority
NMVS	National Medicines Verification System
OBP	On-Boarding Partners
OTC products	Over-the-counter products
PALOP	Official Portuguese Speaking African Countries (Países Africanos de Língua Oficial Portuguesa)
PTC	Product Technical Complaint
PV	Pharmacovigilance
RQU	Responsible Quality Unit
CS	Customer Service
TD	Technical Director

3 Purpose & Set-Up

3.1 Purpose

Country Specific Requirements for Portugal are described in this SOP, regarding e.g. Data Privacy, Sample Handling Process, Reimbursement Process, Contacts, Escalation Rules. During the processing of all PTCs by Bayer owned GBS all country specific requirements are considered and followed besides the general complaint handling described in the SSC-PTC-SOP-001 “Manage Product Technical Complaint and Suspected Counterfeit Incidents in GBS”.

3.2 General Guidance

The employees of GBS are following the SOP during complaint processing in the complaint database on behalf of the Country Quality Units.

3.3 Assigned Roles and Responsibilities

GBS Team	- Enters complaints into the complaint database - Contacts the complainant to acknowledge the complaint and/or obtain more information, when necessary - Performs initial Risk Classification and informs the CQU in case of emergency cases - Forwards the case to the RQU - Checks if a complaint sample is needed and requests the complainant to return the sample. - Verifies and closes the complaint cases in the complaint database - Sends out standard response letters in case it is agreed with the CQU Don´t list task, as tasks are defined in process. - Ensures that changes within the country law and regulation, communicated by the CQU, are implemented timely
Country Quality Head (CQH) / Country Quality Unit (CQU)	- Ensures that all complaints that reach the CQU directly are sent to SSC for processing in the complaint database - Is responsible for regular KPI evaluation in order to get overview of complaint activities at the GBS - Supports the GBS in organizing missing complaint information - Receives the complaint sample and sends it to the RQU if requested. - Sends out the Response Letters to the complainants in the cases agreed with the GBS - Contacts local product suppliers on request of GBS, as RQU, to get investigation reports from the respective product suppliers for local products - Ensures that all changes within the country law and regulation are directly notified to the GBS - Ensures that quarterly updates of product list (including newly distributed and divested products) are communicated to GBS

4 Detailed description (Requirements and Procedures)

4.1 Country Specific Requirements listed by different topics

Description including document reference	Assigned Roles
4.1.1 General Information In Portugal the company operates under one legal entity as Bayer Portugal, Lda. The main office is in Carnaxide whereas Costa Rica is the location of the GBS.	
4.1.2 Contact List CQH: Maria João Santos, *mariajoao.santos@bayer.com* CQU Mailbox: qualityassurance.portugal@bayer.com Phone: +351214164318 // Cellphone +351917891983 CQH Deputy: Célia Pinto, *celia.pinto@bayer.com* Phone: +351214164371 //. Cellphone: +351913761529 Technical Director: António Dias, antonio.dias@bayer.com Pharmacovigilance: Rita Duarte, *rita.duarte@bayer.com*; *pharmacovigilance.sweu@bayer.com*, Portugal contact mailbox: *qualityassurance.portugal@bayer.com* Domicare: *bayercare@domicarecuida.pt* Elanco AH Portugal: *ELANCO_PORTUGAL@elancoah.com*.	
4.1.3 Escalation Rules Any complaint case referring to at least one of the following situations has to be forwarded to the CQU immediately after its opening (risk classification High and Medium) or in less of 24 hours (risk classification Low) since GBS acknowledges it in the global complaint database: - All cases with initial risk classes High or Medium - Suspected Counterfeit Cases - Any cases involving Health Authorities - Confirmation of quality requests - Complaints related to Xofigo (Radiopharmaceutical therapy) - Requests from hospitals asking for a safety statement or indicating that the batch will no longer be used until it's declared safe. The escalation should result in creation of an immediate action task in the complaint data base with the following information: • Title: Reason for escalation • Current due date: Same as the current due dates of the complaint.	GBS

Description including document reference	Assigned Roles
Remark: RQU must be informed via a “Notification” through the communication protocol section if CQU/CQH requests a prioritization of the case investigation	
4.1.4 Pharmacovigilance Cases If a complaint case is related to any type of Adverse Event, the Pharmacovigilance department must be informed to the following e-mail address: *pharmacovigilance.sweu@bayer.com*	GBS
4.1.5 Product Samples If a sample is declared to be available by the complainant, he/she is requested to return it to where it was purchased to reach the CQU at Bayer Portugal, Lda. If the complainant can’t send the sample back to the place of purchase, the GBS offers Bayer Portugal, Lda location as a second option for delivery. (Bayer Portugal, Lda; Departamento de Qualidade; Av. Vitor Figueiredo, nº 4, 4º Piso 2790-255Carnaxide). Retrieval of samples from hospitals or clinics may also be done by the sales Representatives, KAM or Radiology Service Technicians. For complaints coming from sales representatives, it must be confirmed if the sample is available and how it will be sent to the CQU (in case it was not initially indicated). Whenever a sample arrives physically to the CQU at Bayer Portugal building, the CQU informs the GBS of the arrival of such sample, providing all information accompanying the sample, so that GBS can identify it and provide the complaint database event number. **Remark** Breelib samples reach the CQU through the respective BU (either brought by sales representatives or sent by Domicare directly).	GBS/CQU
4.1.6 Statement Letter **Acknowledgement Letter when a complaint comes in:** The complainant needs to get confirmation that the complaint was received. This confirmation is done by e-mail as first option, by the GBS, or by phone	GBS/CQU

Description including document reference	Assigned Roles
if the client only provides this contact information. In this case, GBS contacts CQU to reach the complainant by phone and CQU then sends all the information obtained to the GBS. - GBS sends it only when: information is received directly from the complainant, or through the Bayer Portugal, Lda front desk receptionist. - When an email comes from the CQU, Domicare, a sales representative or PV as a PTC+AE request, acknowledgement has been already done by them and no further Acknowledgement letter from GBS is needed. Templates of the acknowledgement letters can be found in annex 1 and 2. In case of authority request and potential counterfeit, contact with authorities remains on the CQU side. **Response Letter before closing:** As a rule, regarding the complaint database form, select YES in the “Customer response required” field, only if the customer explicitly requests a response, if the complaint comes from a hospital or clinical setting or if the case comes as a HA request. The cases identified below, are always handled by the CQU: - Response Letter related to Health authority requests, PALOP complaints, initial risk classification High and Medium cases, confirmed counterfeit and threats to inform the authorities, media, or blackmail against Bayer Portugal, Lda. In case of PTC + AE and all Essure complaints the response letter is sent by the CQH in liaison with PV. For this purpose, GBS informs CQU when the RQU assessment is finalized and before the PTC closure. CQU provides GBS with the information that should be entered on the “Response Letter” field in the complaint database before closure. Any cases related to initial risk classification low in which the complainant explicitly asks for a final resolution of the quality investigation are handled by GBS. Those letters do not consist on copies of the complaint database. All letters must be in local language. Template of the response letter for unconfirmed cases can be found in annex 3. For confirmed cases, the response must be agreed with the CQU before being sent to the complaint. For cases coming from health professionals and medical centers the response is discussed with the CQU to define who shall provide it.	

Description including document reference	Assigned Roles
4.1.7 RQU List A list with all available products in the country and the respective RQU contact names needed for the entry into the complaint database is available on Share Point- PTC Operations SharePoint → SC Costa Rica → RQU List → "Portugal RQU List". **Remark** Some products have several approved manufacturing sites for the same SKU. To identify the correct RQU, GBS has to search in the "Portugal RQU list" the initials of the batch number in the line of the product of importance, then, the list will provide the appropriate site.	GBS
4.1.8 List of Local Products - IOHEXOL IMAX 647 BT - IOHEXOL IMAX 755 BT - Medical devices from local suppliers to support Radiology business **Remark** Investigations of complaints related to Local Products are assessed by Portugal CQU acting as an RQU.	
4.1.9 Data Privacy Requirements For all electronic information provided, GBS must follow and apply the 'User Guide for Redaction of Personal Data in Complaint Attachments: *Complaints - IQMS Complaint Management Trainings* to ensure compliance with data privacy requirements.	GBS
4.1.10 Gathering Additional Information (Including Obtaining Translation) Contact with complainant (written) to gather missing information regarding the complaint is done by GBS employee responsible for the case in local language. If only verbal communication is possible with the complainant, this is done by the CQU (upon request of GBS).	GBS/CQU
4.1.11 Reimbursement and Replacement A product reimbursement process is always initiated by the local CS team when the physical sample reaches the CQU at Bayer Portugal. For this purpose, CQU must inform CS of the arrival of the samples and provide all the details necessary for the credit to be processed by CS.	SC&CS/CQU

Description including document reference	Assigned Roles
Remark - Due to local Legislation, consumers can't be reimbursed directly from Bayer Portugal, Lda. - Due to tax reasons, replacement of products is not possible in Portugal. - If a consumer decides to send the sample directly to Bayer Portugal, Lda. the reimbursement cannot be provided since it can only be done through the reverse supply chain.	
4.1.12 Exceptions and especial cases Any email related to a non-PTC case (e.g. customer inquiries) must be forwarded to the CQU by sending it to the following email: qualityassurance.portugal@bayer.com, unless the email does not contain valid information (e.g. spam, blank emails) or at least one of the CQU members is already notified. For these cases the service request can be closed without further actions. For all complaints related to human use products that were transferred to other companies and for which there are no longer in the market batches with valid expiration dates, that reach GBS directly, a response should be provided to the complainant informing that the product is not a Bayer product and they should contact the Marketing Authorisation Holder directly. That is the case of Luminaletas, Nalador & Nalador 500 LYO and Nebido. For former AH products (now Elanco), if an inquiry related to an ex-Bayer Animal Health product e.g. from customer, MIIDAS, is received, this inquiry must be assessed for PTC /suspected falsification or counterfeits and, if a PTC including suspected falsification / counterfeit is identified, it must be reported to Elanco (*ELANCO_PORTUGAL@elancoah.com*). In addition, the customer must be informed that Bayer is no longer the owner of the animal health portfolio and must be advised to contact Elanco directly. **Breelib** Breelib is a medical device whose technical complaints are forwarded to GBS by Domicare, a third-party company. Domicare notifies about any technical complaint related to Ventavis and/or Breelib in a 24-hour period. The information provided (when available) is: • Ventavis complaints: Lot number. • Breelib complaints: Indicate if the complaint is related to the base unit or the nebulizer head. The 15-digit serial number available at the bottom of the base unit must be provided by Domicare. • Complainants information (initials, gender and age).	SSC/CQU

Description including document reference	Assigned Roles
• Date when the Breelib started being used. • Description of the incident. • Sample availability: Indicate if the product is available for investigation. If the availability is unknown, three attempts will be performed by Domicare to retrieve it. If the sample is available, it should be informed in the email. • Indicate whether the device was pre-evaluated by Domicare and what the result was. • For PTC + AE: date when the complainant was hospitalized (if applicable), • Safe Track case number created by Domicare. With this information, the PTC officer fills out the “Breelib Report Form for PTC with or without related AE” (Breelib Form) available on SSC-PTC-SOP-002. After entering the complaint into the complaint database, PTC officer includes the complaint ID in the Breelib form and attaches it in the communication protocol. If the sample is available or the availability is unknown, the CQU must be informed including the Breelib form. The Breelib form must be forwarded to PV if the complaint is related to an AE. Domicare sends the Ventavis or Breelib to Bayer Portugal as soon as possible. An email notification is to be sent to *complaints.pt@bayer.com*. Broken devices, devices damaged due to misuse and devices returned without information about a technical complaint will be sent to Bayer Portugal for destruction only and no complaint will be opened into the complaint database. **Continuity of Complaint Reporting** Due to the time zone difference between Costa Rica and Portugal, the CQU may initiate a complaint database case if deemed urgently necessary (e.g. health authority request). The complaint ID created will be forwarded to the GBS via email to ensure no duplicates are generated. Also, GBS can assume the complaint for Close step in the complaint database.	
4.1.13 Others **PALOP** Portugal CQH is responsible for the PTC process for products commercialized in the official Portuguese speaking African countries: Angola, Cape Verde, Guinea-Bissau,	GBS/CQU

Description including document reference	Assigned Roles
Mozambique, São Tomé and Príncipe. All PALOP cases initially reach the CQU who attempts to obtain all necessary information to send to GBS, as well as requests the sample, if available. Due to the distribution chain structure, there is generally no reimbursement to be arranged, except in very special circumstances of direct sales to governmental institutions. In this case, the local CS is responsible for documenting such reimbursement. All response letters to complainants from PALOP are sent by the CQU, after receipt of investigation results provided by the GBS **FMD** All Alerts that reach the Complaint Database, initiated by the Alerts Operators, must be communicated to CQU immediately, to understand the origin of the alert and to define a process to obtain samples, if available, to answer to the complainant and to close the case. CQU may reach GBS with information about (and instructions on how to handle) alerts generated during the Incoming Goods process, at the local warehouse, ensuring that no duplicates are created in the Database. If the RQU does not confirm the complaint as counterfeit, the case can be closed without further actions. If the counterfeit is confirmed, PTC Officer informs the CQU immediately when the RQU assessment is finalized so that they can notify the Health Authorities and MVO about the potential counterfeit.	

5 External References

- SSC-PTC-SOP-001 “Manage Product Technical Complaints and Suspected Counterfeit Incidents in GBS”
- GOI 508 “Quality Aspects of Serialized Barcodes used for Medicinal Products”
- SSC-PTC-SOP-002 Product specifics related to Product Technical Complaint and Suspected Counterfeit Handling

6 Internal References

N/A

7 Annex 1. Acknowledgement letter

Ex$^{mo(a)}$ Sr./Sra ( ),

Muito obrigado(a) pelo seu contacto.

Vimos por este meio informar que demos já inicio à investigação da reclamação técnica reportada relativamente ao nosso produto ( ). A análise deste tipo de problemas irá ajudar a melhorar os nossos produtos e processos de forma a oferecer o melhor serviço possível.

Agradecemos a sua confiança e o interesse nos nossos produtos.

Em caso de novas comunicações, por favor inclua o número de referência ( ) dentro do corpo do e-mail.

Com os melhores cumprimentos,
Equipa de Reclamações

Informamos que os dados pessoais que nos fornecer serão tratados de acordo com a Política de Privacidade de Dados disponível neste link.

8 Annex 2. Acknowledgement letter and additional information request

Ex$^{mo(a)}$ Sr./Sra ( ),

Muito obrigado(a) pelo seu contacto.

Vimos por este meio informar que recebemos a informação referente ao ocorrido com o nosso produto ( ). A análise deste tipo de problemas irá ajudar a melhorar os nossos produtos e processos de forma a oferecer o melhor serviço possível.

De forma a podermos dar início à investigação da reclamação técnica reportada, pedíamos por favor que nos fornecesse as seguintes informações do produto, se aplicável:

- Prazo de validade.
- Número de lote.
- Fotos do defeito reportado.
- Unidade com defeito: para que possa ser realizada a investigação pelo fabricante, necessitamos que a embalagem alvo de reclamação chegue à Bayer. Poderá devolver a embalagem no local onde a mesma foi adquirida (opção preferencial), indicando que deverá chegar ao Departamento de Qualidade da Bayer Portugal, Lda.

Desde já agradecemos a sua colaboração e a confiança e o interesse nos nossos produtos.

Em caso de novas comunicações, por favor inclua o número de referência ( ) dentro do corpo do e-mail.

Com os melhores cumprimentos,

Equipa de Reclamações

Informamos que os dados pessoais que nos fornecer serão tratados de acordo com a Política de Privacidade de Dados disponível neste link.

9 Annex 3. Unconfirmed Defect Response Letter

Ex$^{mo(a)}$ Sr./Sra ( ),

Serve o presente e-mail para dar seguimento da ocorrência que nos foi comunicada no dia ( ) de ( ) relativa ao nosso produto ( ).

Informamos que o resultado da revisão dos registos de fabrico e de embalagem do lote em causa, não revelou registo de qualquer anomalia, incidência ou desvio nos respetivos processos, que possa estar associado ao defeito reportado.

O lote em causa cumpriu com todos os requisitos de especificações de qualidade, em testes realizados antes de ser libertado para comercialização e não há registo de quaisquer referências a ocorrências durante a produção do lote.

Concluímos assim que o lote não revelou qualquer registo de desvio durante o fabrico, que possa estar relacionado com o defeito reportado.

Agradecemos a sua confiança e interesse nos nossos produtos e apresentamos a nossa disponibilidade para qualquer esclarecimento que entenda necessário.

Em caso de novas comunicações, por favor inclua o número de referência ( ) dentro do corpo do e-mail.

Com os melhores cumprimentos,

Equipa de Reclamações

Informamos que os dados pessoais que nos fornecer serão tratados de acordo com a Política de Privacidade de Dados disponível neste link.

History of Changes

Version	Significant changes with respect to previous version	Effective Date *(yyyy-mm-dd)*
1.0	Initial release, not applicable	2020-09-21
2.0	*Updated document number to SSC-PTC-SOP-PT-003 according to SSC-PTC-SOP-003 version 5.0 *Replaced reference to SSC-SOP-001 with SSC-PTC-SOP-001 throughout the document *Section 4.1.2 and 4.1.12 Replace Elanco AH Portugal email address *customerservice_pt@elancoah.com* with ELANCO_PORTUGALcustomerservice_pt@elancoah.com *Section 4.1.11, Assigned Roles & Document Reference for Reimbursement and Replacement, replace “SSC/CQU” with “SC&CS/CQU” *Section 4.1.12, modified special case treatment for Breelib based on User Letter 38 Version 2.0 *Section 4.1.13 FMD, included “while the exception situation given by local authorities to hospitals and pharmacies is in place” *Section 4.1.13 FMD, Number of complaint packages, replaced “As many Alert IDs described in Dev@com’s field “Complaint as reported”. E.g. PT-99f08c63-e491-4204-ac84-be7d4b47dea8” with “As many as serial numbers described in Dev@Com’s field “Complaint as reported” for alignment with SSC-PTC-SOP-001 *Section 5, internal references, added reference to SSC-PTC-SOP-002 *Annex 3 and Annex 4, removed information in red	2021-08-01
3.0	* Section 2 Abbreviations removed CMO. Added GDP * Section 2.1.2 Contact List added CQU mailbox address. Added Elanco AH Portugal mailbox * Section 4.1.4 Escalations Rules, Updated escalation process through the complaint database * Section 4.1.6 statement letter, added instruction for response letter to confirmed cases	See Cover Page

	* Section 4.1.8 List of Local Products, removed luminal and luminetas. Added IOHEXOL IMAX products and medical devices from local suppliers * Section 4.1.9 Data Privacy Requirements, updated instruction for redaction of personal data * Section 4.1.12 Exceptions and especial cases, added instructions for complaints related to human use products * Section 4.1.13 Others, Updated FMD process * Annex 4 Confirmed Defect Response letter, removed * Changed word “Dev@com” for “Complaint Database”.	

Task: Content Approval Verdict: Approve changes & release Approval to be made Effective	Maria Joao Santos (mariajoao.santos@bayer.com) Approver - Content 06-Nov-2025 08:45:06 GMT+0000
Task: Final Approval Verdict: Approve changes & release Final Approval to be made Effective	Roberto Chaves (roberto.chaves@bayer.com) Approver 11-Nov-2025 04:19:27 GMT+0000